

[REPUBLIC ACT NO. 9995, February 15, 2010]

AN ACT DEFINING AND PENALIZING THE CRIME OF PHOTO AND VIDEO VOYEURISM, PRESCRIBING PENALTIES THEREFOR, AND FOR OTHER PURPOSES

Be it enacted by the Senate and House of Representative of the Philippines in Congress assembled:

SECTION 1. *Short Title.* — This Act shall be known as the "Anti-Photo and Video Voyeurism Act of 2009".

SEC. 2. *Declaration of Policy.* — The State values the dignity and privacy of every human person and guarantees full respect for human rights. Toward this end, the State shall penalize acts that would destroy the honor, dignity and integrity of a person.

SEC. 3. *Definition of Terms.* — For purposes of this Act, the term:

- a. "Broadcast" means to make public, by any means, a visual image with the intent that it be viewed by a person or persons.
- b. "Capture" with respect to an image, means to videotape, photograph, film, record by any means, or broadcast.
- c. "Female breast" means any portion of the female breast.
- d. "Photo or video voyeurism" means the act of taking photo or video coverage of a person or group of persons performing sexual act or any similar activity or of capturing an image of the private area of a person or persons without the latter's consent, under circumstances in which such person/s has/have a reasonable expectation of privacy, or the act of selling, copying, reproducing, broadcasting, sharing, showing or exhibiting the photo or video coverage or recordings of such sexual act or similar activity through VCD/DVD, Internet, cellular phones and similar means or device without the written consent of the person/s involved, notwithstanding that consent to record or take photo or video coverage of same was given by such person/s.
- e. "Private area of a person" means the naked or undergarment clad genitals, public area, buttocks or female breast of an individual.
- f. "Under circumstances in which a person has a reasonable expectation of privacy" means circumstances in which a reasonable person would believe that he/she could disrobe in privacy, without being concerned that an image or a private area of the person was being captured; or circumstances in which a reasonable person would believe that a private area of the person would not be visible to the public, regardless of whether that person is in a public or private place.

SEC. 4. *Prohibited Acts.* — It is hereby prohibited and declared unlawful for any person:

- a. To take photo or video coverage of a person or group of persons performing sexual act or any similar activity or to capture an image of the private area of a person/s such as the naked or undergarment clad genitals, public area, buttocks or female breast without the consent of the person/s involved and under circumstances in which the person/s has/have a reasonable expectation of privacy;
- b. To copy or reproduce, or to cause to be copied or reproduced, such photo or video or recording of sexual act or any similar activity with or without consideration;
- c. To sell or distribute, or cause to be sold or distributed, such photo or video or recording of sexual act, whether it be the original, copy or reproduction thereof; or
- d. To publish or broadcast, or cause to be published or broadcast, whether in print or broadcast, or cause to be published or broadcast, whether in print or broadcast media, or show or exhibit the photo or video coverage or recordings of such sexual act or any similar activity through VCD/DVD, internet, cellular phones and other similar means or device.

The prohibition under paragraphs (b), (c) and (d) shall apply notwithstanding that consent to record or take photo or video coverage of the same was given by such person/s. Any person who violates this provision shall be liable for photo or video voyeurism as defined herein.

SEC. 5. *Penalties.* — The penalty of imprisonment of not less than three (3) years but not more than seven (7) years and a fine of not less than One hundred thousand pesos (P100,000.00) but not more than Five hundred thousand pesos (500,000.00), or both, at the discretion of the court shall be imposed upon any person found guilty of violating Section 4 of this Act.

If the violator is a juridical person, its license or franchise shall automatically be deemed revoked and the persons liable shall be the officers thereof including the editor and reporter in the case of print media, and the station manager, editor and broadcaster in the case of a broadcast media.

If the offender is a public officer or employee, or a professional, he/she shall also be administrative liable.

If the offender is an alien, he/she shall be subject to deportation proceedings after serving his/her sentence and payment of fines.

SEC. 6. *Exemption.* — Nothing contained in this Act, however, shall render it unlawful or punishable for any peace officer who is authorized by a written order of the court, to use the record or any copy thereof as evidence in any civil, criminal investigation or trial of the crime of photo or video voyeurism. *Provided,* That such written application and the examination under oath or affirmation of the applicant and the examination under oath or affirmation of the applicant and the witnesses he/she may produce, and upon showing that there are reasonable grounds to believe that photo or video voyeurism has been committed

or is about to be committed, and that the evidence to be obtained is essential to the conviction of any person for, or to the solution or prevention of, such crime.

SEC. 7. *Inadmissibility of Evidence.* — Any record, photo or video, or copy thereof, obtained or secured by any person in violation of the preceding sections shall not be admissible in evidence in any judicial, quasi-judicial, legislative or administrative hearing or investigation.

SEC. 8. *Separability Clause.* — If any provision or part hereof is held invalid or unconstitutional, the remaining provisions not affected thereby shall remain valid and subsisting.

SEC. 9. *Repealing Clause.* — Any law, presidential decree or issuance, executive order, letter of instruction, administrative order, rule or regulation contrary to or inconsistent with the provisions of this Act is hereby repealed, modified or amended accordingly.

SEC. 10. *Effectivity Clause.* — This Act shall take effect fifteen (15) days after its complete publication in the *Official Gazette* or in two (2) newspapers of general circulation.

Approved,

(Sgd.) JUAN PONCE ENRILE
President of Senate

(Sgd.) PROSPERO C. NOGRALES
Speaker of the House of Representatives

This Act which is a consolidation of Senate Bill No. 2357 and House Bill No. 6517 was finally passed by the Senate and House of Representatives December 1, 2009 and November 18, 2009 on respectively.

(Sgd.) EMMA LIRIO-REYES
Secretary of Senate

(Sgd.) MARILYN B. BARUA-YAP
Secretary General House of Representatives

Approved: FEB 15 2010

(Sgd.) GLORIA MACAPAGAL - ARROYO
President of the Philippines



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